



**“AN ACT TO RATIFY THE MANO RIVER UNION ROAD
DEVELOPMENT AND TRANSPORT FACILITATION
P R O J E C T L O A N A G R E E M E N T
BETWEEN THE OPEC FUND FOR INTERNATIONAL
DEVELOPMENT AND THE REPUBLIC OF LIBERIA”**

APPROVED: AUGUST 5, 2025

**PUBLISHED BY AUTHORITY
MINISTRY OF FOREIGN AFFAIRS
MONROVIA, LIBERIA**

PRINTED: AUGUST 21, 2025

**“AN ACT TO RATIFY THE MANO RIVER UNION ROAD DEVELOPMENT AND
TRANSPORT FACILITATION PROJECT (LIBERIA SECTION) LOAN AGREEMENT
BETWEEN THE OPEC FUND FOR INTERNATIONAL DEVELOPMENT AND THE
REPUBLIC OF LIBERIA”**

*“It is enacted by the Senate and House of Representatives of the Republic of
Liberia in Legislature assembled:*

SECTION I:

That from and immediately upon the passage of this “ACT TO RATIFY THE MANO RIVER UNION ROAD DEVELOPMENT AND TRANSPORT FACILITATION PROJECT (LIBERIA SECTION) LOAN AGREEMENT BETWEEN THE OPEC FUND FOR INTERNATIONAL DEVELOPMENT AND THE REPUBLIC OF LIBERIA” as herein cited below word for word in the authentic English version be and the same is hereby ratified to give full force and effect to the provisions as contained herein.

SECTION II: SHORT TITLE:

This Act shall also be cited as “THE MANO RIVER UNION ROAD DEVELOPMENT AND TRANSPORT FACILITATION PROJECT (LIBERIA SECTION)”

SECTION III:

That any and all obligations, covenants, terms and conditions as contained in the above mentioned “*ACT TO RATIFY THE MANO RIVER UNION ROAD DEVELOPMENT AND TRANSPORT FACILITATION PROJECT (LIBERIA SECTION) LOAN AGREEMENT BETWEEN THE OPEC FUND FOR INTERNATIONAL DEVELOPMENT AND THE REPUBLIC OF LIBERIA*” shall be carried into full completion unless otherwise modified, amended, or repealed.

SECTION IV: EFFECTIVE DATE:

This Act, shall take effect immediately upon publication into handbills.

“ANY LAW TO THE CONTRARY NOTWITHSTANDING”



LOAN NO. 15869P

MANO RIVER UNION ROAD DEVELOPMENT AND TRANSPORT
FACILITATION PROJECT (LIBERIASECTION)

LOAN AGREEMENT

BETWEEN

THE OPEC FUND FOR INTERNATIONAL DEVELOPMENT

AND

THE REPUBLIC OF LIBERIA

A handwritten signature in blue ink, located in the bottom right corner of the page. The signature is cursive and appears to be 'shu'.

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AGREEMENT concluded between the OPEC Fund for International Development ("OPEC Fund") and the Republic of Liberia ("Borrower").

Whereas, the Borrower has requested a loan from the OPEC Fund for part financing of the Project described in Schedule 1; and

Whereas, the OPEC Fund has approved a loan to the Borrower in the amount of twenty million Dollars (\$20,000,000) upon the terms and conditions set forth hereinafter ("Loan").

Now, therefore, the parties to this Loan Agreement ("Agreement") hereby agree as follows:

Article 1

GENERAL CONDITIONS: DEFINITIONS

1.01 The General Conditions attached hereto shall constitute an integral part of this Agreement.

1.02 In addition to the terms defined in the preamble, the following terms and expressions shall have the following meanings or, where they duplicate terms and expressions in the General Conditions, the following specific meanings:

- (a) "Authorized Representative" of the Borrower means its Minister of Finance and Development Planning;
- (b) "Closing Date" means June 30, 2028;
- (c) "Date of Repayment" means the date of each semi-annual repayment of the Loan as set forth in Schedule 3;
- (d) "Dollar" and the sign "\$" mean and refer to the lawful currency of the United States of America;
- (e) "Eligible Expenditure Commencement Date" means December 14, 2023;
- (f) "Executing Agency" means the Borrower's Ministry of Public Works;

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- (g) "General Conditions" means the General Conditions for Public Sector Loans, April 2025; and
- (h) "Grace Period" means the period beginning on the Date of the Agreement and ending five (5) years from that date.

* * *

Article 2 THE LOAN

2.01 The OPEC Fund agrees to lend to the Borrower and the Borrower agrees to borrow from the OPEC Fund the Loan in the amount of twenty million Dollars (\$20,000,000) on the terms and conditions set forth in this Agreement.

2.02 The Borrower shall pay interest at the rate of one and a quarter of one per cent (1.25%) per annum on the principal amount of the Loan withdrawn and outstanding.

2.03 The Borrower shall pay a commitment fee of a quarter of one per cent (0.25%) per annum on the unwithdrawn balance of the Loan, which fee shall begin to accrue sixty (60) days from the Date of the Agreement and shall be payable in the first instance within ninety (90) days from the Date of Effectiveness. For the avoidance of doubt, no commitment fee shall be payable if the Agreement is terminated for failure to become effective.

2.04 Interest and commitment fee (except the first payment, which shall be payable as stipulated in section 2.03) shall be paid semi-annually on June 15 and December 15 in each year into OPEC Fund Account.

2.05 The Borrower shall repay the principal of the Loan in Dollars, or in any other freely convertible currency acceptable to the OPEC Fund in an amount equivalent to the Dollar amount due according to the market exchange rate prevailing at the time and place of repayment. Repayment shall commence immediately following the end of the Grace Period and shall be affected in forty (40) semi-annual instalments, each in an amount determined by the OPEC Fund as specified in Schedule 3 (AMORTIZATION) for the respective Date of Repayment.

2.06 The Date of the Agreement shall be the date on which it is signed and dated by the authorized representative of the last party to sign and date the same.

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* * *

Article 3

EFFECTIVENESS

3.01 This Agreement shall enter into force and effect in accordance with Section 3.02 upon receipt by the OPEC Fund of:

(a) Satisfactory evidence that the execute on and delivery of this Agreement on behalf of the Borrower have been duly authorized and ratified according to the constitutional requirements of the Borrower; and

(b) a certificate issued by the Minister of Justice, Attorney General or any other competent legal authority of the Borrower confirming that this Agreement has been duly authorized and ratified by the Borrower and constitutes a valid and binding obligation of the Borrower in accordance with its terms.

3.02 As soon as possible after the conditions specified in Section 3.01 have been satisfactorily fulfilled, this Agreement shall enter into full force and effect on the Date of Effectiveness.

3.03 If this Agreement does not become effective within one hundred and eighty (180) days after the Date of the Agreement, the Agreement and all obligations of the parties hereunder shall terminate, unless the OPEC Fund, after consideration of the reasons for the delay, establishes a later date for the purposes of this Section.

* * *

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Article 4 ADDRESSES

4.01 The parties' addresses are as specified below:

For the OPEC Fund:

The OPEC Fund for International Development
Parking 8
A-IOIO Vienna
AUSTRIA
Facsimile: (++43-1) 513 92 38

For the Borrower:

Ministry of Finance and Development Planning
Broad Street
Monrovia
LIBERIA
Facsimile: (++231-777) 309021

* * *

The OPEC Fund for International Development

LOAN NO. 15869P

IN WITNESS whereof the parties hereto, acting through their duly authorized representatives, have caused this Agreement to be signed and delivered by exchange of correspondence in two counterparts in the English language, each considered an original and both to the same and one effect as of the Date of the Agreement.

FOR THE OPEC FUND FOR INTERNATIONAL DEVELOPMENT:

Signature: _____



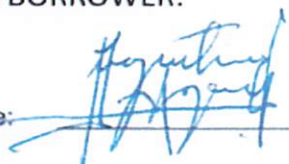
Name: Dr Abdulhamid Alkhalifa

Title: President

Date: June 2, 2025

FOR THE BORROWER:

Signature: _____



Name: HE Augustine Kpehe Ngafuan

Title: Minister of Finance and Development Planning

JUNE 26, 2025

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REPUBLIC OF LIBERIA

MANO RIVER UNION ROAD DEVELOPMENT AND TRANSPORT FACILITATION

PROJECT (LIBERIA SECTION)

SCHEDULE 1

PROJECT DESCRIPTION

1.01 The Project aims to improve the country's regional connectivity by upgrading the road infrastructure and increasing regional trade facilitation, thereby reducing travel times, increasing traffic of goods and people, and increasing the volume of goods traded across the Liberia - Sierra Leone border.

2.01 The Project's objective will be achieved through the implementation of the following activities:

(a) Upgrade to an All-Weather Road

This component will finance the rehabilitation of the existing 48.5 km road connecting John Davie Town to Zwedru city, including upgrading the current gravel road to asphaltic concrete, in order to enhance its resilience to severe weather conditions. It consists of the following activities:

- (i) *Road Civil Works:* This sub-component will finance climate resilient upgrading of the road section (48.5 km).
- (ii) *Control and Monitoring of Civil Works:* This sub-component will finance civil works construction supervision and monitoring.
- (iii) *Environmental and Social Management Plan (ESMP) and Resettlement Action Plan (RAP) Implementation:* This sub-component will finance environmental mitigation measures and implementation of the resettlement action plan.
- (iv) *Awareness Raising on HIV/AIDS, Ebola, COVID-79, and Road Safety:* This sub-component will finance awareness campaigns for HIV/AIDS, Ebola, COVID-19, road safety, climate risks and road safety measures in extreme weather events.

(b) Transport and Trade Facilitation

This component will finance: (i) the climate resilient rehabilitation of a border control station between Liberia and Sierra Leone; (ii) interconnected IT systems for trade; (iii) capacity building, with training of customs officials on the use of the Regional Customs Network for Transit Trade (SIGMAT); (iv) the Mano River Union secretariat for the implementation of the regional component of the

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program; and (v) an inter-agency coordination platform as well as training of customs officials.

(c) Integrated Support to Local Communities

This component will finance the: (i) construction of market facilities and boreholes in the Project area; and (ii) capacity building and empowerment of farmers and small and medium enterprises in the Project area, to better engage in commercial activities, assess climate risks and opportunities, and deploy climate smart agricultural practices.

(d) Project Management

This component will finance: (i) socio-economic impact monitoring and evaluation; (ii) monitoring the implementation of the ESMP; (iii) technical and road safety audit; (iv) accounting and financial audit; (v) institutional support and professional training course for sector engineers and the Project Implementation Unit; (vi) equipment for the implementing agencies; and (vii) functioning of the Joint Technical Committee.

* * *

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REPUBLIC OF LIBERIA MANO RIVER UNION ROAD DEVELOPMENT. AND TRANSPORT FACILITATION PROJECT (LIBERIA SECTION)

SCHEDULE 2 LOAN ALLOCATION

1. Unless otherwise agreed between the Borrower and the OPEC Fund, the table below sets forth the components to be financed out of the proceeds of the Loan, the allocation of amounts of the Loan to each component and the percentage of total expenditures for items to be financed in respect of each component:

Component	Amount of the Loan Allocated (Expressed in Dollars)	Percentage of Total Expenditures to be Financed
1. Upgrade to an All-Weather Road	18,140,000	38.6
2. Transport and Trade Facilitation	-	-
3. Integrated Support to Local Communities	-	-
4. Project Management	-	-
Contingencies	1,860,000	
Total	20,000,000	

2. Notwithstanding the allocation of the Loan proceeds or the disbursement percentage set forth in paragraph 1 above, if the OPEC Fund has reasonably estimated that the amount of the Loan then allocated to any component will be insufficient to finance the agreed percentage of all expenditures in that component, the OPEC Fund may, by notice to the Borrower: (i) reallocate to such component, to the extent required to meet the estimated shortfall, proceeds of the Loan which are then allocated to another component and which in the opinion of the OPEC Fund are not needed to meet other expenditures; and (ii) if such reallocation cannot fully meet the estimated shortfall, reduce the disbursement percentage then applicable to such expenditures in order that further withdrawals in respect of such component may continue until all expenditures thereunder shall have been made.

* * *

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REPUBLIC OF LIBERIA MANO RIVER UNION ROAD DEVELOPMENT AND TRANSPORT

FACILITY PROJECT (LIBERIA SECTION)

SCHEDULE 3

AMORTIZATION

1. The following table sets forth the Dates of Repayment of the Loan and the percentage of the principal amount of the Loan due and payable (Amount Due) on each Date of Repayment. If the proceeds of the Loan have been fully withdrawn as of the first Date of Repayment, the principal amount of the Loan repayable by the Borrower on each Date of Repayment shall be determined by the OPEC Fund by multiplying: (a) the total amount of the Loan withdrawn and outstanding as of the first Date of Repayment; by (b) the percentage of the Amount Due specified below for each Date of Repayment.

<u>No.</u>	<u>Date of Repayment</u>	<u>Amount Due</u> (Expressed in Percentage)
1	June 15, 2023	2.50
2	December 15, 2030	2.50
3	June 15, 2031	2.50
4	December 15, 2031	2.50
5	June 15, 2032	2.50
6	December 15, 2032	2.50
7	June 15, 2033	2.50
8	December 15, 2033	2.50
9	June 15, 2034	2.50
10	December 15, 2034	2.50
11	June 15, 2035	2.50
12	December 15, 2035	2.50
13	June 15, 2036	2.50
14	December 15, 2036	2.50
15	June 15, 2037	2.50
16	December 15, 2037	2.50
17	June 15, 2038	2.50
18	December 15, 2038	2.50
19	June 15, 2039	2.50
20	December 15, 2039	2.50
21	June 15, 2040	2.50
22	December 15, 2040	2.50
23	June 15, 2041	2.50
24	December 15, 2041	2.50
25	June 15, 2042	2.50
26	December 15, 2042	2.50
27	June 15, 2043	2.50

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28	December 15, 2043	2.50
29	June 15, 2044	2.50
30	December 15, 2044	2.50
31	June 15, 2045	2.50
32	December 15, 2045	2.50
33	June 15, 2046	2.50
34	December 15, 2046	2.50
35	June 15, 2047	2.50
36	December 15, 2047	2.50
37	June 15, 2048	2.50
38	December 15, 2048	2.50
39	June 15, 2049	2.50
40	December 15, 2049	2.50
<u>Total</u>		100

2. In the event that the Loan proceeds have not been fully withdrawn as of the first Date of Repayment, the principal amount of the Loan repayable by the Borrower on each Date of Repayment shall be determined as follows:

- (a) To the extent that any amount of the Loan proceeds have been withdrawn as of the first Date of Repayment, the Borrower shall repay the Loan amount withdrawn and outstanding as of the first Date of Repayment in accordance with paragraph 1 above.
- (b) Any withdrawal made after the first of Repayment shall be repaid on each Date of Repayment falling after the date of such withdrawal in amounts determined by the OPEC Fund as follows: amount of the withdrawal multiplied by a fraction, the numerator of which shall be the instalment percentage specified in table in paragraph 1 above for such Date of Repayment and the denominator of which shall be the sum of all remaining instalment percentages for Dates of Repayment falling on and after such date.

3. Withdrawals made within sixty-five (65) calendar days prior to any Date of Repayment shall, for the purposes solely of calculating the amount of the Loan payable on any Date of Repayment, be treated as withdrawn and outstanding on the date immediately following such Date of Repayment. Notwithstanding the treatment herein, interest and commitment fee shall begin to accrue on the respective value dates on which such withdrawals shall have been made.

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THE HONORABLE HOUSE OF REPRESENTATIVES

Capitol Building
P.O. Box 9005
Monrovia, Liberia
Website: www.legislature.gov.lr



Office of the Chief Clerk

-2025-

THE SECOND SESSION OF THE FIFTY-FIFTH LEGISLATURE OF THE
REPUBLIC OF LIBERIA.

SCHEDULE OF THE HOUSE'S ENROLLED BILL NO. 10 ENTITLED:

"AN ACT TO RATIFY THE MANO RIVER UNION ROAD
DEVELOPMENT AND TRANSPORT FACILITATION PROJECT LOAN
AGREEMENT BETWEEN THE OPEC FUND FOR INTERNATIONAL
DEVELOPMENT AND THE REPUBLIC OF LIBERIA"

PRESENTED TO THE PRESIDENT OF THE REPUBLIC OF LIBERIA
FOR EXECUTIVE APPROVAL.

APPROVED THIS 5th DAY OF August A.D. 2025


THE PRESIDENT OF THE REPUBLIC OF LIBERIA

-2025-

-ATTESTATION-

**"AN ACT TO RATIFY THE MANO RIVER UNION ROAD DEVELOPMENT
AND TRANSPORT FACILITATION PROJECT LOAN AGREEMENT
BETWEEN THE OPEC FUND FOR INTERNATIONAL DEVELOPMENT AND
THE REPUBLIC OF LIBERIA"**



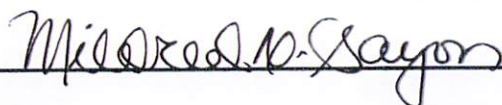
**VICE PRESIDENT OF THE REPUBLIC OF LIBERIA/PRESIDENT OF
THE SENATE**



SECRETARY, LIBERIAN SENATE



SPEAKER, HOUSE OF REPRESENTATIVES



CHIEF CLERK, HOUSE OF REPRESENTATIVES, R.L.

-2025-

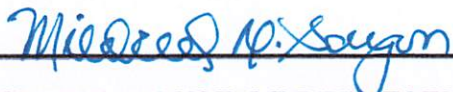
**SECOND SESSION OF THE FIFTY-FIFTH
LEGISLATURE OF THE REPUBLIC OF LIBERIA**

HOUSE'S ENGROSSED BILL NO. 31 ENTITLED:

**"AN ACT TO RATIFY THE MANO RIVER UNION ROAD
DEVELOPMENT AND TRANSPORT FACILITATION PROJECT
(LIBERIA SECTION) LOAN AGREEMENT BETWEEN THE
OPEC FUND FOR INTERNATIONAL DEVELOPMENT AND THE
REPUBLIC OF LIBERIA"**

On Motion Bill was read. On Motion, the Bill was adopted on its first reading and sent to Committee Room on Wednesday, July 16, 2025 @ 14:00 GMT.

On motion, the Bill was taken from the Committee Room. On motion under the suspension of the rule, the second reading of the Bill constituted the third and final reading and the Bill was adopted, passed into the full force of the law and ordered engrossed today, Friday, July 18, 2025, @ 13:06 GMT.



CHIEF CLERK, HOUSE OF REPRESENTATIVES

-2025-

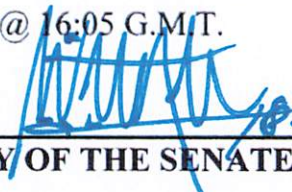
**SECOND SESSION OF THE FIFTY-FIFTH
LEGISLATURE OF THE REPUBLIC OF LIBERIA**

**SENATE'S ENDORSEMENT TO HOUSE'S
ENGROSSED BILL NO: 31 ENTITLED:**

**"AN ACT TO RATIFY THE MANO RIVER UNION
ROAD DEVELOPMENT AND TRANSPORT
FACILITATION PROJECT (LIBERIA SECTION)
LOAN AGREEMENT BETWEEN THE OPEC FUND
FOR INTERNATIONAL DEVELOPMENT AND THE
REPUBLIC OF LIBERIA"**

On motion, Bill read on its 1st reading, Thursday, July 17, 2025 @ 13:20 GMT. On motion Bill read on its second reading, adopted and send to the Committee Room on Tuesday, July 22, 2025 at 14:06 GMT.

On motion, Bill taken from the Committee Room. On motion, the third reading of the Bill constituted the third and final reading and the Bill was adopted, passed into the full force of the law and ordered engrossed today, Wednesday, July 23, 2025 @ 16:05 G.M.T.



SECRETARY OF THE SENATE, R.L